

TENTATIVE RULING

Case: **Kays v. FCA US, LLC**
 Case No. CV2025-1760

Hearing Date: **August 19, 2026** **Department Fourteen** **9:00 a.m.**

Plaintiffs Robert Kays and Jane Kays' motion to compel initial disclosures is **DENIED AS MOOT**. (Code Civ. Proc., § 871.26.) After the parties executed a stipulation and protective order, defendant FCA US LLC served its supplemental document production on August 6, 2026. (Brown decl., ¶ 5, Exhibit 3.) Plaintiffs have not shown that, following this supplemental production, defendant's initial disclosure remains deficient. (See Code Civ. Proc., § 1005, subd. (b) [reply due five court days before the hearing].)

Plaintiffs' request for sanctions is **DENIED**. (Code Civ. Proc., § 871.26, subd. (j).) To the extent that defendant did not comply with Code of Civil Procedure section 871.26(b), defendant has shown good cause to not impose sanctions. (Brown decl., ¶¶ 2-8, Exhibits 1-6.)

The notice of motion does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **LVNV Funding LLC v. Vidales**
 Case No. CV2022-0999

Hearing Date: **August 19, 2026** **Department Fourteen** **9:00 a.m.**

The Court declines to consider: (1) defendant Mark Vidales’ reply to plaintiff LVNV Funding LLC’s opposition to motion for reconsideration (filed August 4, 2025); and (2) defendant’s evidentiary objections to declaration of David C. McGaffey (filed August 4, 2025). Based on the initial hearing date (July 7, 2026), these documents were untimely filed. (Code Civ. Proc., § 1005, subd. (b); Cal. Rules of Court, rule 3.1300(d); *Rancho Mirage Country Club Homeowners Assn. v. Hazelbaker* (2016) 2 Cal.App.5th 252, 262 [stating that “a trial court has broad discretion to accept or reject late-filed papers”].)

Defendant’s motion for reconsideration of order denying defendant’s motion is **DENIED**. (Code Civ. Proc., § 1008, subd. (a).) Defendant’s declaration does not state: (1) what application was made before; (2) when and to what judge; (3) what order or decisions were made; and (4) what new or different facts, circumstances, or law are claimed to be shown. (*Ibid.*; Vidales decl., ¶¶ 2-8.) Further, even if the Court were to consider the bases for relief in the motion, defendant fails to either: (a) identify new or different facts, circumstances, or law; or (b) for newly asserted facts, articulate how such new facts warrant a different outcome. (See *Gilberd v. AC Transit* (1995) 32 Cal.App.4th 1494, 1500.)

The notice of motion does not provide notice of this Court’s tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.